

Raipur, the 12th October 2006

NOTIFICATION

No. F 2-10/2006/1/6 - In exercise of the powers conferred by sub-section (1) of section 27, the Right to Information Act, 2005 (No. 22 of 2005) the State Government hereby repealed the Chhattisgarh Right to Information (Fee and Charge) Rules 2006, issued by notification dated 9th March, 2006 and for justification of sub section (9) of section 7 of Right to Information Act 2005, makes the following rules, namely :-

RULES

1. Short title and commencement :-
 - (1) These rules may be called the Chhattisgarh right to information (fees and charge) rules 2007.
 - (2) It shall come into force from the date of its publication in the Official Gazette.
2. Definitions :- In the rules unless the context otherwise requires -
 - (a) "Act" means the right to Information Act, 2005 (No. 22 of 2005);
 - (b) "Section" means the sections of the Act;
 - (c) "Below poverty line" means such citizen of State of Chhattisgarh who is declared as below poverty line by the Government of Chhattisgarh;
 - (d) The word and expressions used but not defined in these rules carry shall meaning as have been assigned to them in the Act.
3. Information sought by persons below poverty line under the Act shall be provided free of cost as describe here under :-
 - (i) If the information sought relates to his/her life then the information will be provided in the form in which it is demanded.
 - (ii) If the information sought is not pertaining to self but if the information can be given in 50 photocopied pages (of A-4 Size) or the cost of production of information is within Rs. 100 (Rupees one hundred only) then the sought information will be provided in the form it is sought.
 - (iii) If the information sought involves photocopying of more than 50 pages or of the cost of production exceeds Rs. 100 (Rupees one hundred only) then the by recording reasons under section 7 (9) of the Act the applicant will be requested to inspect the records/files in the office.
4. The fee for inspection of file for first hour shall be now Rs. 50 (Rupees fifty only) for the persons who do not belong in the definition of below poverty line.

By order and in the name of Governor of Chhattisgarh
NAND KUMAR, Secretary